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Provision of April 24, 2024
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THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding
the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of
August 10, 2018, containing "Provisions for the adaptation of
national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD to the report from the Local Police of the
City of Guidonia Montecelio (Metropolitan City of
Rome Capital) dated April 5, 2023, and the checks
carried out on July 5, 2023, by the Financial Police – Special Unit for Privacy Protection and
Technological Fraud – which confirmed the presence
of a video surveillance system, consisting of 6
properly functioning cameras, suitable for
capturing both customers and employees;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000;

REPORTING Dr. Agostino Ghiglia;

PREMISE

1. The outcome of the checks.

With a note received on April 5, 2023, the Local Police
of the City of Guidonia Montecelio (Metropolitan
City of Rome Capital, hereinafter "Local Police") transmitted to this Authority a
communication regarding treatments carried out
at the commercial establishment "DLY" of Aifei Yang
(Dly S.r.l. – VAT No. 14671381003, hereinafter
"Company"), located in BOX No. 4 within the
"Tiburtino Shopping Center," from which it was evident
that the installation of a video surveillance system
was not compliant with the regulations on the protection of
personal data.

In order to obtain more precise information regarding the actual functioning of the video surveillance
system, the Authority availed itself of the
collaboration of the Financial Police – Special Unit for Privacy Protection and Technological Fraud
(hereinafter "GDF").

With a note received on October 17, 2023, the GDF transmitted
the report of the inspection carried out at
the establishment on July 5, 2023, which indicated that,
at the aforementioned premises, there was a

properly functioning video surveillance system, composed of 6 non-panning cameras, with a fixed focal length, whose images were accessible both via a DVR located in the false ceiling and remotely, via an application installed on the private smartphone of the owner, as well as on that of the owner's husband.

All six cameras capture color images "that allow for the clear identification of the subjects recorded," are active 24 hours a day, equipped with digital zoom, and were found to be suitable for capturing the employees working inside the establishment.

Based on the elements acquired during the investigative activity, as well as subsequent evaluations, it was determined that the installation and use of the video surveillance system at the point of sale occurred without an agreement with the trade union representatives or authorization issued by the Labor Inspectorate, as required by Article 4 of Law No. 300 of 1970.

The documents reveal that:

- "the video surveillance system has been operational and active since the opening of the point of sale, which took place in October 2022";
- "it allows for the viewing of images (both in real-time and recorded)";
- the viewing "occurs exclusively through the specific app "iDMSS Plus" installed on my personal smartphone and on my husband's";
- "it is possible to view images in real-time as well as those recorded up to 24 hours prior";
- "the images are retained for the purpose of protecting and ensuring the safety of individuals and the company's assets."

Regarding the failure to request authorization from the Labor Inspectorate, the owner of the Company stated that she thought "that the request made and obtained for the point of sale at Via Prenestina No. 427 in Rome was still valid and sufficient, having reused the same system in this store; for your reference, I provide you with the aforementioned authorization issued by the Territorial Labor Inspectorate of Rome, on July 18, 2019."

In this regard, it is emphasized that the aforementioned authorization is irrelevant, as it was issued for a different point of sale, based on a different type of premises, context, positioning, and functioning of the cameras.

It is also noted that the indications previously provided by the Inspectorate in the aforementioned authorization would not have been respected in any case, as in the technical declarations attached to obtain the Authorization itself, it is specified, for example, that "the images cannot be viewed via iPhone, mobile phone, smartphone, iPad, tablet, etc., except for the possibility of network access according to the provisions of the Guarantor.

****Privacy****; the authorization also specifically states that "on each access to the images (which should normally occur only in cases of verification of criminal acts or harmful events) the company must ensure the presence of a representative of the workers designated by them and must promptly inform

the employed workers: the workers may periodically verify the correct use of the system."

****2. The initiation of the procedure.****

Based on the findings of the aforementioned report, notification was made, with a note dated 15.12.2023 (protocol 0166412/23), regarding the initiation of the procedure for the adoption of measures pursuant to Articles 58, paragraph 2, and 83 of Regulation (EU) 2016/679 (hereinafter "Regulation"), in accordance with the provisions of Article 166, paragraph 5, of Legislative Decree No. 196 of June 30, 2003 (hereinafter "Code"), in relation to the violation of the principle of lawfulness of processing (Article 5, paragraph 1, letter a) of the Regulation in relation to Article 114 of the Code) and Article 88 of the Regulation regarding the applicable regulations in this matter.

Following the contestation, the Company sent the Authority a copy of the authorization request, submitted on 15.01.2024, to the competent Territorial Labor Inspectorate, but did not proceed to provide subsequent communication regarding its possible acceptance, presumably still under examination, nor did it communicate to the Authority the interruption of the unlawful processing of data carried out through the video surveillance system.

In the dialogue with the Authority, the Company demonstrated that it had updated the information signs to the model proposed in the Guidelines No. 3/2019 of the European Data Protection Board on the processing of personal data through video devices.

****3. The legal framework of the processing carried out.****

The use of video surveillance systems can result, in relation to the positioning of the cameras and the quality of the images captured, in the processing of personal data.

Such processing, as occurred in this case, must be carried out in compliance with the general principles contained in Article 5 of the Regulation. The data controller must also follow the indications contained in the provision regarding video surveillance - April 8, 2010 [1712680] (in this sense also the FAQs on video surveillance published on the Authority's website), and in the Guidelines No. 3/2019 of the European Data Protection Board on the processing of personal data through video devices.

Moreover, if the video surveillance system is capable of capturing employees during work activities, the related processing of personal data is lawful only if it complies with the regulations provided for in Article 4, Law No. 300 of May 20, 1970.

In fact, the processing of personal data carried out within the employment relationship, if necessary for the purpose of managing that relationship (see Articles 6, paragraph 1, letters b) and c); 9, paragraph 2, letter b) of the Regulation), must be conducted in compliance with the general principles indicated by Article 5 of the Regulation, and in particular the principle of lawfulness, according to which processing is lawful if it complies with the applicable sector regulations (Article 5, paragraph 1, letter a) of the Regulation).

Consistent with this approach, Article 88 of the Regulation has preserved national provisions of greater protection ("more specific rules") aimed at ensuring the protection of the rights and freedoms regarding the processing of personal data of workers.

The national legislator has approved, as a more specific provision, Article 114 of Legislative Decree No. 196 of June 30, 2003 (hereinafter "Code") which among the conditions for the lawfulness of processing has established compliance with the provisions of Article 4, Law No. 300 of May 20, 1970. The violation of the aforementioned Article 88 of the Regulation is subject, if the requirements are met, to the application of an administrative pecuniary sanction pursuant to Article 83, paragraph 5, letter d) of the Regulation.

According to the aforementioned Article 4, Law No. 300 of 1970, video surveillance systems, if they also allow "remote monitoring" of employees' activities, "may be used exclusively for organizational and productive needs, for workplace safety, and for the protection of company assets," and their installation must, in any case, be carried out following the stipulation of a collective agreement with the unitary trade union representation or with the company trade union representatives or, if it has not been possible to reach such an agreement or in the absence of representatives, only if preceded by the issuance of a specific authorization by the Labor Inspectorate.

The activation and conclusion of this guarantee procedure is therefore an indispensable condition for the installation of video surveillance systems. The violation of this provision is subject to criminal

penalties (see Article 171 of the Code).

****4. The outcome of the investigation and the sanctioning procedure.****

Based on the findings made by the Financial Police, it emerged that through the video surveillance system installed at the commercial establishment, consisting of six cameras capable of capturing both customers and employees, personal data processing was carried out in the absence of the guarantee measures provided for pursuant to Article 4 of Law 300/1970, referred to by Article 114 of the Code, in relation to...

the presence, in the video-surveilled premises of staff employees.

5. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Art. 58, par. 2, Regulation.

The processing of personal data carried out by the Company is therefore unlawful, as outlined above, in relation to Articles 5, par. 1, lett. a) (legality principle), 88 of the Regulation and Article 114 of the Code regarding the protection of personal data.

The violation established as described in the reasoning cannot be considered "minor", given the nature, severity, and duration of the violation, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see Recital 148 of the Regulation).

The party has communicated that it would comply with the provisions of Article 4 of Law 300/1970, but has not provided subsequent evidence (or any updates to the Authority) regarding the fulfillment and, pending the issuance of the authorization itself, the cessation of the unlawful processing of data.

Following the investigation and the established unlawfulness of the conduct as described above, it is therefore necessary to adopt an injunction order pursuant to Article 58, par. 2, lett. i) of the Regulation, for the application of an administrative monetary sanction, as well as to impose a ban on the processing.

6. Injunction Order.

The Authority, pursuant to Article 58, par. 2, lett. i) of the Regulation and Article 166 of the Code, has the power to impose an administrative monetary sanction provided for by Article 83, par. 5, letters a) and d), of the Regulation, through the adoption of an injunction order (Article 18, Law of November 24, 1981, No. 689), in relation to the processing of personal data carried out by the company through the video surveillance system, the unlawfulness of which has been established, as outlined above, in relation to Articles 5, par. 1, lett. a) and 88 of the Regulation, and Article 114 of the Code.

With reference to the elements listed in Article 83, par. 2, of the Regulation for the application of the administrative monetary sanction and its

quantification, considering that the sanction must be “effective, proportionate, and dissuasive in each individual case” (Article 83, par. 1 of the Regulation), it is represented that, in this case, the following circumstances have been taken into account: with regard to the nature and severity of the violation, it is noted that it concerns the principles applicable to the processing referred to in Article 5 of the Regulation as well as compliance with the sector regulations referred to in Article 88 of the Regulation and the responsibility related to the failure to implement the guarantee procedure provided for by Article 114 of the Code; the absence of specific previous violations by the data controller, related to breaches of the regulations on the protection of personal data; the circumstance that the Company has partially cooperated with the Authority during the proceedings, providing evidence of having initiated the process with the Territorial Labor Inspectorate in order to comply with the guarantee procedures provided for by Law 300/1970 (so-called Workers' Statute), without, however, providing further updates regarding its outcome, despite the specific request; with regard to the duration of the violation, the fact that the Company has not sent any communication regarding the cessation of the unlawful processing is particularly relevant. It is also believed that the economic conditions of the offender, determined with reference to the income declaration for the tax year 2022, are relevant in this case, considering the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (Article 83, par. 1, of the Regulation).

Based on the aforementioned elements, evaluated as a whole, it is deemed appropriate to set the amount of the monetary sanction at €5,000.00 (five thousand) for the violation of Articles 5, par. 1, lett. a), 88 of the Regulation and 114 of the Code.

In this context, also considering the type of violation established, it is deemed that, pursuant to Article 166, paragraph 7, of the Code and Article

16, paragraph 1, of the Authority's Regulation No. 1/2019, the publication of this decision on the Authority's website should proceed.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Authority, are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY declares, pursuant to Articles 57, par. 1, letters a)

and h) and 83 of the Regulation, the unlawfulness of the processing carried out by Dly S.r.l. of Aifei Yang –

VAT No. 14671381003, through the use of the video surveillance system installed at the commercial establishment “DLY”, located in BOX No. 4 within the “Tiburtino Shopping Center”, as outlined in the reasoning, for the violation of Article 5,

par. 1, lett. a), 88 of the Regulation and Article 114 of the Code;

ORDERS

pursuant to Article 58, par. 2, lett. f) of the Regulation, the prohibition of the processing carried out through the video surveillance system, as it is suitable for the remote monitoring of workers, until

****that has not complied with the provisions of the Regulation, in particular Article 88 of the Regulation and Article 114 of the Code, by activating the guarantee measures provided for by Article 4 of Law 300/1970;****

****ORDERS****

pursuant to Article 58, paragraph 2, letter i) of the Regulation, Dly S.r.l. – VAT No. 14671381003, to pay the sum of €5,000.00 (five thousand) as an administrative pecuniary sanction for the violation indicated in the reasoning;

****COMMANDS****

the same company to pay the sum of €5,000.00 (five thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the subsequent executive acts pursuant to Article 27 of Law No. 689/1981. It is noted that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction within the term referred to in Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

****DISPOSES****

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

It is also ordered that the initiatives undertaken to implement the provisions of this provision be communicated and that adequately documented feedback be provided pursuant to Article 157 of the Code, within 30 days from the date of notification of this provision; any failure to respond may result in the application of the administrative sanction provided for by Article 83, paragraph 5, letter e) of the Regulation.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, April 24, 2024

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei